

Reserved for Recording

IN THE CIRCUIT COURT OF THE EIGHTEENTH JUDICIAL CIRCUIT,
IN AND FOR BREVARD COUNTY, FLORIDA

___ Probation Violator ___ Community Control Violator ___ Retrial ___ Resentence

STATE OF FLORIDA

vs.

LINDSEY NOELE THORSON

Case Number: 05-2020-CF-017114-XXXX-XX

Filed in Open Court on April 12, 2021 9:17 am.
A Kuhn, Deputy Clerk



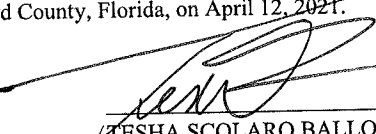
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JUDGMENT/ORDER OF PROBATION

Court was opened with the Honorable TESH A SCOLARO BALLOU presiding, and in attendance: State Attorney: ELENA VAZQUEZ; Trial Clerk A Kuhn. The Defendant, LINDSEY NOELE THORSON, being personally before this Court represented by KEVIN J MAWN, the attorney of record, and said Defendant having entered a plea of nolo contendere to the following crime(s):

OBTS Number(s): 0501405710			
Count	Crime	Offense Statute Number	Degree
2	TAMPERING OR FABRICATING WITH PHYSICAL EVIDENC	918..13.	F3
<u>X</u> And being a qualified offender pursuant to s. 943.325, the defendant shall be required to submit DNA samples as required by law.			
<u>X</u> and good cause being shown, it is ordered that ADJUDICATION OF GUILT BE WITHHELD.			

DONE AND ORDERED in open court at Brevard County, Florida, on April 12, 2021.


TESHA SCOLARO BALLOU, Circuit Judge

PTY: D-1
Event Code 5637

☒ IN THE CIRCUIT COURT, EIGHTEENTH JUDICIAL CIRCUIT,
BREVARD COUNTY, FLORIDA
☐ IN THE COUNTY COURT, BREVARD COUNTY, FLORIDA

CASE NUMBER

05-2020EF-017114-AXXX

XX

FINGERPRINTS OF DEFENDANT

OBTS NUMBER _____

FILED IN OPEN COURT

This _____ day of _____,

20____, at _____ M.

CLERK OF COURTS

BY _____ DC

PLAINTIFF

STATE OF FLORIDA

vs

Lindsey Noele Thorson

1. R. Thumb	2. R. Index	3. R. Middle	4. R. Ring	5. R. Little
				
6. L. Thumb	7. L. Index	8. L. Middle	9. L. Ring	10. L. Little
				

Fingerprints taken by: Angela Gleason #883

(name)

Deputy Sher. ff

(title)

I HEREBY CERTIFY that the above and foregoing fingerprints on this judgment are the fingerprints of the defendant, Lindsey Noele Thorson, and that they were placed thereon by the defendant in my presence in open court this date.

DONE AND ORDERED
BREVARD COUNTY,
FLORIDA

JUDGE

DATE

4/12/2021

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**IN THE CIRCUIT COURT OF THE EIGHTEENTH JUDICIAL CIRCUIT,
IN AND FOR BREVARD COUNTY, FLORIDA**

STATE OF FLORIDA

Case Number: 05-2020-CF-017114-XXXX-XX

vs.

OBTS Number(s): 0501405710

LINDSEY NOELE THORSON

SENTENCE

The Defendant, LINDSEY NOELE THORSON, being personally before this Court, accompanied by the Defendant's attorney of record, KEVIN J MAWN, and an adjudication of guilt having been withheld herein, and the Court having given the Defendant an opportunity to be heard and to offer matters in mitigation of sentence, and to show cause why the Defendant should not be sentenced as provided by law, and no cause being shown

It is the sentence of the Court that:

(as to Count 2)

- X And being a qualified offender pursuant to s. 943.325, the defendant shall be required to submit DNA samples as required by law.
- X The Defendant is placed on probation for a period of five (5) years under the supervision of the Department of Corrections, according to the terms and conditions of supervision set forth in a separate order entered herein.

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**IN THE CIRCUIT COURT OF THE EIGHTEENTH JUDICIAL CIRCUIT,
IN AND FOR BREVARD COUNTY, FLORIDA**

STATE OF FLORIDA,
Plaintiff

Case Number: 05-2020-CF-017114-XXXX-XX

vs.

LINDSEY NOELE THORSON,
Defendant

ORDER OF PROBATION

Probation

The court hereby stays and withholds the imposition of sentence as to count(s) 2 and places the defendant on probation for a period of five (5) years under the supervision of the Department of Corrections

Reserved for Recording

**IN THE CIRCUIT COURT OF THE EIGHTEENTH JUDICIAL CIRCUIT,
IN AND FOR BREVARD COUNTY, FLORIDA**

STATE OF FLORIDA,
Plaintiff

Case Number: 05-2020-CF-017114-XXXX-XX

vs.

LINDSEY NOELE THORSON,
Defendant

STANDARD CONDITIONS OF PROBATION

It is further ordered that the defendant comply with the following standard conditions and sanctions of community control / probation:

1. (01) Not later than the fifth day of each month, you will make a full and truthful report to your officer on the form provided for that purpose.
2. (02) You will pay the State of Florida the amount of \$50.00 per month toward the cost of your supervision, unless otherwise waived in compliance with Florida Statutes.
3. (03) You will not change your residence or employment or leave the county of your residence without first procuring the consent of your officer.
4. (04) You will not possess, carry or own any firearm. You will not possess, carry, or own any weapons without first procuring the consent of your officer.
5. (05) You will live without violating the law. A conviction in a court of law shall not be necessary for such a violation of law to constitute a violation of your probation.
6. (06) You will not associate with any person engaged in any criminal activity.
7. (07) You will not use intoxicants to excess or possess any drugs or narcotics unless prescribed by a physician. Nor will you visit places where intoxicants, drugs or other dangerous substances are unlawfully sold, dispensed or used.
8. (08) You will work diligently at a lawful occupation, advise your employer of your probation status, and support any dependents to the best of your ability, as directed by your officer.
9. (09) You will promptly and truthfully answer all inquiries directed to you by the court or the officer, and allow your officer to visit in your home, at your employment site or elsewhere, and you will comply with all instructions your officer may give you.
10. (10) You will pay restitution, court costs, and/or fees in accordance with special conditions imposed or in accordance with attached orders.
11. (11) You will report in person within 72 hours of your release from incarceration to the Probation Office in Brevard County, Florida, unless otherwise instructed by the court or department. (This condition applies only if released from the Department of Corrections confinement.) Otherwise, you must report immediately to the probation office located at: 1060 W. King Street, Cocoa, FL 32922; CONTACT AT 321.634.3570 WITHIN 24 HOURS
12. (12) You shall submit to the drawing of blood or other biological specimens as required by s. 943.325, Florida Statutes.
13. (13) You shall submit to the taking of a digitized photograph as required by s. 948.03, Florida Statutes.
14. (13a) You shall pay a related cost of \$1.00 for each month of your probationary term. The amount due, up to \$60.00, shall be paid within the first ninety (90) days after the beginning of your probationary sentence. Further, payments, if any, shall be paid in accordance with a schedule to be established by your officer, if the offender agrees, or the Court.
15. (31) Submit to random testing as directed by the probation officer or the professional staff of the treatment center where he or she is receiving treatment to determine the presence or use of alcohol or controlled substances.

**IN THE CIRCUIT COURT OF THE EIGHTEENTH JUDICIAL CIRCUIT,
IN AND FOR BREVARD COUNTY, FLORIDA**

STATE OF FLORIDA

Case Number: 05-2020-CF-017114-XXXX-XX

vs.

LINDSEY NOELE THORSON

SPECIAL CONDITIONS OF PROBATION

And it is further ordered that the defendant comply with the following special conditions of community control / probation.

(as to Count 2)

- a. Your fines and court costs set forth on the Fine/Costs/Fees page on this judgment are made conditions of your probation and will be paid to the Clerk of the Circuit Court, P.O. Box 919026, Orlando, FL 32891-9026.
- b. (01) You must undergo a Drug and Alcohol evaluation and, if treatment is deemed necessary, you must successfully complete the treatment, and be responsible for the payment of any costs incurred while receiving said evaluation and treatment, unless waived by the court. Additional instructions ordered: COMPLETE WITHIN 30 DAYS OF INPATIENT PROGRAM
- c. (03) You will be required to pay for drug testing unless exempt by court. .
- d. (04) You will enter the Department of Corrections Non-Secure Drug Treatment Program or other residential treatment program/Probation and Restitution Center for a period of successful completion as approved by your officer. You are to remain until you successfully complete said Program and Aftercare. You are to comply with all Rules and Regulations of the Program. You shall be confined in the county jail until placement in said program, and if you are confined in the jail, the Sheriff will transport you to said program. DEFENDANT IS ALREADY ENROLLED AND LIVING AT GLASS HOUSE
- e. (05) You will abstain entirely from the use of alcohol and/or illegal drugs, and you will not associate with anyone who is illegally using drugs or consuming alcohol.
- f. (06) You will submit to urinalysis testing on a monthly basis to determine the presence of alcohol or illegal drugs. You will be required to pay for the tests unless exempt by the court.
- g. (07) You will not visit any establishment where the primary business is the sale and dispensing of alcoholic beverages.
- h. (08) You will successfully complete 50 hours of community service at a rate of \$ \$5.00 , at a work site approved by your officer. Additional instructions ordered: MAY BUY OUT HALF
- i. (09) You will remain at your residence between 10 p.m. and 6 a.m. due to a curfew imposed, unless otherwise directed by the court. CURFEW SCHEDULE MAY BE ADJUSTED WITH PROBATION FOR WORK SCHEDULE INCLUDING COMMUTE TIME
- j. (12) You will have no contact (direct or indirect) with the victim or the victim's family during the period of supervision.
- k. (19) You will attend an HIV/AIDS Awareness Program consisting of a class of not less than two (2) hours or more than four (4) hours in length, the cost for which will be paid by you.
- l. (20) You shall submit your person, property, place of residence, vehicle or personal effects to a warrantless search at any time, by any probation or community control officer.
- m. (21) If you have been found to have committed a crime on or after October 1, 2008 for the purpose of benefitting, promoting, or furthering the interests of a criminal gang, you are prohibited from knowingly associating with other criminal gang members or associates, except as authorized by law enforcement officials, prosecutorial authorities, or the court, for the purpose of aiding in the investigation of criminal activity.
- n. (23) Other: CONTINUE AND SUCCESSFULLY COMPLETE INPATIENT TREATMENT PROGRAM (GLASS HOUSE)
- o. (24) Other: NO POSSESSION OR CONSUMPTION OF ALCOHOL OR CONTROLLED SUBSTANCES WITHOUT A VALID PRESCRIPTION
- p. (25) Other: NO CONTACT WITH E.C.
- q. (26) Other: RANDOM TESTING AT DEFENDANTS EXPENSE

LINDSEY NOELE THORSON

Case Number: 05-2020-CF-017114-AXXX-XX

- r. (27) Other: IF THE VICTIM WAS UNDER 18, A PROHIBITION ON LIVING WITHIN 1,000 FEET OF A DESIGNATED PUBLIC SCHOOL BUS STOP.
- s. (28) Other: YOU ARE PROHIBITED FROM POSSESSING ANY PICTURE IMAGE VIDEOS IN ANY FORM PRINT OR DIGITAL OR OTHERWISE OF THE VICTIM OR HIS/HER FAMILY FROM THE PAST PRESENT OR ANYTIME IN THE FUTURE FROM THE DATE OF THE PLEA.
- t. (31) You shall fully cooperate with authorized officials to fulfill any registration or identification procedures authorized by law.
- u. (32) You will have no unsupervised contact with a child under the age of 18 unless supervised by the child's parent or legal guardian, or by a court order. Exception:
- v. (33) Active participation in and successful completion of sex offender treatment program with qualified practitioners specifically trained to treat sex offenders, at the offender's own expense. If a qualified practitioner is not available within a 50-mile radius of the offender's residence, the offender shall participate in other appropriate therapy.
- w. (34) A prohibition on any contact with the victim, directly or indirectly, including through a third person, unless approved by the victim, the offender's therapist, and the sentencing court.
- x. (34) There will be no mention of the victim in any form on the internet and/or electronic media. This would include computer websites such as Facebook, or anything comparable; any blogs, twitter, emails, instant messaging, etc.; and no looking at victim's Facebook page.
- y. (35) If the victim was under the age of 18, a prohibition on contact with a child under the age of 18 except as provided in this paragraph. The Court may approve supervised contact with a child under the age of 18 if the approval is based upon a recommendation for contact issued by a qualified practitioner who is basing the recommendation on a risk assessment. Further, the sex offender must be currently enrolled in or have successfully completed a sex offender therapy program. The court may not grant supervised contact with a child if the contact is not recommended by a qualified practitioner and may deny supervised contact with a child at any time.
- z. (36) If the victim was under the age of 18, a prohibition on working for pay or as a volunteer at any place where children regularly congregate, including, but not limited to any school, day care center, park, playground, pet store, library, zoo, theme park, or mall.
- aa. (37) Unless otherwise indicated in the treatment plan provided by the sexual offender treatment program, a prohibition on viewing, accessing, owning, or possessing any obscene, pornographic, or sexually stimulating visual or auditory material, including telephone, electronic media, computer programs, or computer services that are relevant to the offender's deviant behavior pattern.
- bb. (38) A requirement that the offender submit a DNA sample to the Florida Department of Law Enforcement to be registered with the DNA data bank.
- cc. (40) Submission to a warrantless search by the community control or probation officer of the offender's person, residence, or vehicle.
- dd. (46) A prohibition on accessing the Internet or other computer services until the offender's sex offender treatment program, after a risk assessment is completed, approves and implements a safety plan for the offender's accessing or using the Internet or other computer services.
- ee. Early Termination: The defendant may apply for early termination after AFTER 36 MONTHS if all conditions are met and there are no violations.
- ff. No contact with the victim on any form of social media; no comments or responses to third parties about the victim on any form of social media.
- gg. Other: You shall register with Probation and Parole any electronic mail address or instant message/twitter/blog name prior to using such electronic media, and said communication is reviewable upon request by Probation and Parole, and defendant will consent and/or sign any waiver to obtain said records from internet/electronic media provider if necessary.
- hh. Other: You shall submit to a psychological evaluation, including a psycho-sexual evaluation, with a therapist approved by Probation and parole within thirty (30) days of release and, if treatment is deemed necessary, you must successfully complete the treatment, and be responsible for the payment of any costs incurred while receiving said evaluation and treatment, unless waived by the court. .
- ii. Search of any computer(s) or electronic device(s) that is used by the defendant upon request by P & P.
- jj. The defendant is prohibited from viewing, accessing, owning, or possessing any obscene, pornographic, or sexually stimulating visual or auditory material unless otherwise indicated in the treatment plan by a qualified practitioner in the sexual offender treatment program. Visual or auditory material includes, but is not limited to, telephone, electronic media, computer programs, and computer services.

LINDSEY NOELE THORSON

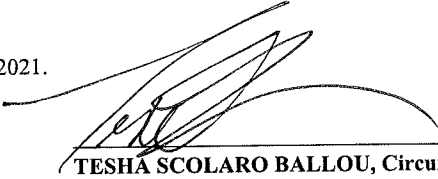
Case Number: 05-2020-CF-017114-XXXX-XX

- kk. The defendant shall not distribute candy or other items to children on Halloween; wearing a Santa Claus costume, or other costume to appeal to children. on or preceeding Christmas; wearing an Easter Bunny costume, or other costume to appeal to children, on or proceedings Easter; entertaining at children's parties; or wearing a clown costume; without prior approval from the court.
- ll. The defendant shall not visit schools, child care facilities, parks, and playgrounds, without prior approval from the offender's supervising officer.
- mm. You will not reside or stay overnight in any accommodation but, excludes motels and hotels, where a child under the age of 18 is residing or spending the night.

PROBATION

You are hereby placed on notice that the court may at any time rescind or modify any of the conditions of your probation, or may extend the period of probation as authorized by law, or may discharge you from further supervision. If you violate any of the conditions of your probation, you may be arrested and the court may revoke your probation, adjudicate you guilty if adjudication of guilt was withheld, and impose any sentence which it might have imposed before placing you on probation or require you to serve the balance of said sentence.

DONE AND ORDERED in Brevard County, Florida, on April 12, 2021.


TESHA SCOLARO BALLOU, Circuit Judge

**CIRCUIT COURT OF THE EIGHTEENTH JUDICIAL CIRCUIT,
IN AND FOR BREVARD COUNTY, FLORIDA**

STATE OF FLORIDA

Case Number: 05-2020-CF-017114-XXXX-XX

vs.

LINDSEY NOELE THORSON

SIGNATURE PAGE

In the event the above sentence is to the Department of Corrections, the Sheriff of Brevard County, Florida, is hereby ordered and directed to deliver the Defendant to the Department of Corrections at the facility designated by the department together with a copy of this judgment and sentence and any other documents specified by Florida Statute.

The Defendant was advised in open court of the right to appeal from this sentence by filing a notice of appeal within thirty (30) days from this date with the clerk of this court and the Defendant's right to the assistance of counsel in taking the appeal at the expense of the State on showing of indigency.

In imposing the above sentence, the Court further recommends:

*(Items marked with *(COP), *(COCC), and *(COS) are Conditions of Probation, Community Control, and Condition of Suspension)*

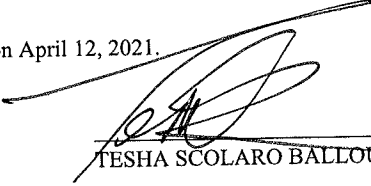
(as to Count 2)

Additional Conditions of Community Control/Probation

Court has no objection to waiver or reduction of cost of supervision. Defendant to address this with probation officer.

THE COURT HEREBY ORDERS THE DEFENDANT released on Probation. Report to Probation within 24 hours.

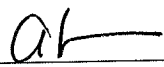
DONE AND ORDERED at Brevard County, Florida, on April 12, 2021.



TESHA SCOLARO BALLOU, Circuit Judge

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that a copy of the foregoing has been furnished by U.S. Mail / hand delivery to KEVIN J MAWN, 1820 GARDEN ST, TITUSVILLE, FL 32796-3223 on 4-12-2021.



Deputy Clerk